

M/S Prime Pulp & Paper Pvt. Ltd. v. Paschimanchal Vidyut Vitaran Nigam Ltd.

High Court of Judicature at Allahabad · Division Bench · 21 March 2017 · Writ-C No. 43757 of 2014 · **Writ dismissed; reasons as in Writ-C 30898 of 2016**

HEADNOTE

A writ seeking to quash an additional-security demand under clause 4.20 of the U.P. Electricity Supply Code, 2005, after an interim restraint following a similar stay, was dismissed by adopting the reasons recorded the same day in Writ-C No. 30898 of 2016.

FACTUAL SUMMARY

The petitioner, a paper mill, challenged Paschimanchal Vidyut Vitaran Nigam Ltd.'s demand notice dated 20 April 2014 for additional security, said to have been raised under clause 4.20 of the U.P. Electricity Supply Code, 2005. After time to show that it had applied for a pre-payment meter, it relied on an interim stay granted in a similar writ (Supreme Ceramics, W.P. No. 51844 of 2009). On 4 September 2014 the Court connected the petitions and, without prejudice, restrained the respondents from demanding additional security. The writ was later dismissed on 21 March 2017.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.20

additional security

HOLDING

The writ petition seeking quashing of the additional-security demand under clause 4.20 of the U.P. Electricity Supply Code, 2005 is dismissed; the reasons are those recorded on the same date in Writ-C No. 30898 of 2016. ¶ 3

PRINCIPLE TAGS

prepayment-meter-exemption-conditional-on-availability A writ seeking to quash an additional-security demand under clause 4.20 of the U.P. Electricity Supply Code, 2005, after an interim restraint following a similar stay, was dismissed by adopting the reasons recorded the same day in Writ-C No. 30898 of 2016. ¶ 3

TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
<i>M/s Supreme Ceramics Limited v. Paschimanchal Vidyut Vitaran Nigam Ltd.</i> Writ Petition No. 51844 of 2009 (order dated 7.10.2009)			2	Referred
<i>Order of date in Writ-C No. 30898 of 2016</i> Writ-C No. 30898 of 2016 (order dated 21.3.2017)			3	Referred

